

5. **Strict powers, and powers directory.**—Again, powers have been dealt with by the Court as either of a *strict* or of a *directory* character: the former such as only arise under the exact circumstances prescribed by the settlement; the latter such as being merely monitory may be taken with a degree of latitude. Thus, where an advowson was vested in trustees upon trust to elect and present a fit person *within six months* from the incumbent's decease, it was considered that the clause was *directory*, and that the trustees might equally elect and present, although that period had elapsed (*f*). So, where six trustees were empowered *when reduced to three* to substitute others, and all died but one, it was held competent to the sole survivor to fill up the number (*g*).

[*601] * And where in the case of twenty-five trustees, the direction was, that *when reduced to fifteen* the survivors should nominate, it was determined by the Court that, although seventeen remained, the survivors were at *liberty* to exercise their power, but that, when reduced to only fifteen, they were *compellable* to do so (*a*).

6. **Charity.**—These were cases of *charitable* trusts, in which it seems a greater latitude of construction is allowed. But in another case, where the trusts were not charitable, and estates were devised to trustees upon trust to sell “with all convenient speed, and within *five years* after the testator's decease,” it was held that these words were *directory* only, and that the trustees could sell and make a good title, although the five years had expired (*b*).

II. We proceed to consider the *construction* of powers. As the powers of trustees are regulated by the doctrines applicable to powers in general, and as the admirable treatise of Lord St. Leonards is in every one's hands, we shall advert only to some cases of most frequent occurrence.

(*f*) Attorney-General v. Scott, 1 Ves. 413, see 415.

(*g*) Attorney-General v. Floyer, 2 Vern. 748; and see Attorney-General v. Bishop of Lichfield, 5 Ves. 825; Attorney-General v. Cumming, 2

Y. & C. C. C. 139; but see Foley v. Wontner, 2 J. & W. 245.

(*a*) Doe v. Roe, 1 Anst. 80.

(*b*) Pearce v. Gardner, 10 Hare, 287; and see Cuff v. Hall, 1 Jur. N. S. 973.